DOCUMENT TITLE:

Affidavit of Scott Johnson - January 19, 2022

DOCUMENT CATEGORY (Circle One):

PLEADINGS

MOTIONS

FACTA/BRIEFS – MOTIONS

FACTA/BRIEFS – APPLICATIONS

FACTA/BRIEFS - APPEALS

DOCUMENT TYPE (Circle One):

PLEADING

MOTION

FACTUM

ORDER

Court Administration
JAN 2 [illegible]
Halifax, N.S.

2020

Hfx No. 496393

Supreme Court of Nova Scotia

Between:

LESLIE J. CONRAD, EDWIN CONRAD, DAN MERZETTI, and SHERRI MERZETTI

Applicants

- and -

ARICHAT METAL FABRICATION LTD., GREGORY BOUCHER, and JOHN BOUDREAU

Respondents

- and -

1766134 Nova Scotia Limited

Third Party

Affidavit of Scott Johnson

I, Scott Johnson, of Whitby, Province of Ontario, make oath and say as follows:

1. I am a National Property Claim Consultant with Allstate Insurance Company of Canada.

2. I have personal knowledge of the evidence sworn to in this affidavit except where otherwise stated to be based on information or belief.

3. I state in this affidavit the source of any information that is not based on my own personal knowledge and I state my belief in the source.

4. Allstate Insurance Company of Canada, having subrogated to the rights of the plaintiffs, Leslie J. Conrad, Edwin Conrad, Dan Merzetti, and Sherri Merzetti, in the civil action in Hfx No. 331744 (the Applicants in the herein application), retained Shelley A. Wood, solicitor with the law firm Stewart McKelvey, to act as its legal counsel from approximately March 2010 to January 2020.

5. During Ms. Wood's legal retainer, she and I frequently exchanged written and verbal communications as between solicitor and client, wherein I sought, or she gave, legal advice. I at all times intended that our communications would be confidential.

6. Such communications, exchanged for the purpose of giving or receiving legal advice, included an email Ms. Wood wrote to me, dated December 16, 2016, wherein she offered certain legal advice regarding the conduct of the action in Hfx No. 331744.

affiant corrected the date to Dec. 20, 2016. in court on March 15, 2022 (virtually)

7. I am advised by my current legal counsel, Sian G. Laing of Cox & Palmer, and do verily believe it to be true, that that December 16, 2016 email is now the subject of a motion for production brought by Arichat Metal Fabrication Ltd. and John Boudreau, Respondents to the herein application.

8. I make this Affidavit in support of the Applicants' response to Arichat Metal Fabrication Ltd. and John Boudreau's motion for production, and for no other or improper purpose.

Affirmed remotely by Scott Johnson stated as being located in the City of Whitby, in the Province of Ontario, before me in the City of Halifax, in the Province of Nova Scotia, on the 19 day of January, 2022.	)	
Sian G. Laing Barrister and Solicitor, Nova Scotia	)	Scott Johnson

SIAN G. LAING
A Barrister of the Supreme Court of Nova Scotia